

cover story SANJAY DUTT

eventuality, but he would not believe it." The lovable don of the Munnabhai series was confident that his good conduct and filmography over the last 14 years would earn him sympathy not just from Bollywood but also from the country at large. On judgement day, neither his lucky shirt nor his transformed image could save him. Perhaps, the developments in the court had made him believe that his good conduct would avert a sentence, so what if he had been hobnobbing with Dawood Ibrahim, Anees Ibrahim, Chota Rajan and Iqbal Mirchi years ago. As Kode observed: "Sanjay Dutt was a mature man of 34 years when he committed the offence. He committed a chain of crimes. Acquiring such weapons (AK-56) shows scant respect for the law. It is an eminently dangerous act."

Few could argue with that, or with Kode's conclusion: "Your crime was not ghastly, brutal, inhuman or anti-social and did not result in harm to anyone, but it is still a serious offence and can encourage others to break the law. Laws of the nation come first." He ordered that Dutt be sent to jail immediately, turning down the actor's plea for time to surrender.

PHOTO BY PETER J. HANCOCK



THE BLAST IN NUMBERS

257 died and 713 were injured in the Bombay blasts

189 were chargesheeted, 123 tried and 100 convicted

687 witnesses were examined; 20,000 pages of statement recorded

14 years was the duration of the trial

20 were sentenced to life, 12 to death and 23 acquitted

Dutt's relationships weren't confined to the underworld. Investigating agencies and the prosecution maintain that they were under tremendous political pressure to go soft on him. On one occasion, while Special Public Prosecutor Ujjwal Nikam was arguing against Dutt's appeal for probation, CBI Chief Investigating Officer O.P. Chhatwal got a call on his mobile, and when he came back, he attempted to calm Nikam's impassioned plea to the court. One of the rumours doing the rounds among the Mumbai Police is that a telephone diary, which contained the numbers of many from the underworld, was recovered from Dubai. The number of Anees in the diary tallied with a number Dutt frequently called. But the diary never

made it to the court as evidence.

Ironically, less than eight months ago, the same court had announced that Dutt was no terrorist—a development he treated as a certificate of good character from the judge. But justice, as they say, is reason without passion, and Kode chose reason over emotion. While rejecting his plea for probation under the Probation of Offenders Act of 1958, the judge made it clear that while the court had accepted the fact that he had acquired the AK-56 for self-defence, it clearly wasn't Dutt's first offence. Said Kode: "His first offence was the acquisition of the .9 mm pistol from one Kayyum, a key aide of Dawood, in September 1992. His second offence was the acquisition of the AK-56 and ammunition in January 1993, for

which he has been held guilty under the Arms Act." Dutt already possessed three licenced weapons—a 375 Magnum double-barrelled rifle, a 12-bore gun with double barrels, and a 270 Bruno rifle. "He had different types of licenced weapons, so where was the need for an AK-56 rifle, a weapon of mass destruction," questions Nikam.

Quoting his confession, the court traced his romance with the underworld back to the time when he was shooting for Firoz Khan's *Yalgaar* in Dubai in 1992. That was the first time Dutt met Dawood and attended parties thrown by him and his brother Anees. In his confession, Dutt clearly admits that he met Mirchi and Rajan in this period, something that has not worked in his favour. Kode, in his judgement, said: